འབྲུག་འཕྲིན་རང་སྐྱོང་ཚོགས་ལྷན་ཁག་འཛིན།

BHUTAN POSTAL CORPORATION LIMITED

Notesheet

Date: **04-07-2025**
Number: **682**
Priority Type: **Urgent**
Subject: **Release of Nu.210,000/- Against Legal Service Fees for Arbitration Case – Bhutan Post vs. Gyalcon Infrastructure Pvt. Ltd.**

This is to apprise the Management that Bhutan Postal Corporation Limited (BPCL) has engaged a legal counsel to represent the Corporation in the ongoing arbitration proceedings with Gyalcon Infrastructure Private Limited. The arbitration case pertains to the construction of the BPCL building at Gelephu.

As per the mutual agreement with the appointed legal firm, the total legal service fee for the entire arbitration process has been fixed at **Nu.700,000/- (Ngultrum Seven Lakhs only)**. The legal counsel has successfully attended the first arbitration hearing held on **27th June 2025**, and the next rebuttal hearing is scheduled for **22nd July 2025**.

In accordance with the agreed payment terms and services rendered to date, it is proposed to release an initial installment of **Nu.210,000/- (Ngultrum Two Lakhs Ten Thousand only)** as a **partial payment** against the total legal service fees. The **remaining balance of Nu.490,000/-(Four Lakhs Ninty Thousand only)** shall be processed and released in **phases**, based on the progress of the arbitration proceedings and upon submission of relevant hearing reports by the legal counsel.

Submitted for kind approval and release of Nu.210,000/-(Tow Lakhs Ten Thousand Only) please.

UGYEN WANGCHUK Applied to: **PENJOR on** 04-07-2025
Remarks: **Sir, Submitted for necessary action please.**

PENJOR Forwarded to: **RINCHEN ZANGMO on** 04-07-2025
Remarks: **Madam, recommended for approval, please.**

RINCHEN ZANGMO Forwarded to: **THINLEY WANGCHUK on** 04-07-2025
Remarks: **Sir,For kind approval, please.**

THINLEY WANGCHUK Approved to: **UGYEN WANGCHUK on** 04-07-2025
Remarks: **Approved as proposed and recommended -ensure the proper timeline on its hearing and records as per the-agreement enforced.**

དགེ་ལེགས་གྱུན་འབྱུང་ཁྲིམས་ལྷན་ཞབས་ཏོག

Geylek Kuenjung Law Firm
Thimphu: Bhutan
(YOUR JUSTICE, OUR MISSION)

July 03, 2025

To,
The Chief Executive Officer,
Bhutan Postal Corproation Limited,
Thimphu: Bhutan.

Sub: **Request to Released Legal Service Fees**

Dasho,

This has reference to the Legal Service Agreement between Bhutan Postal Corproation Limit and Firm for representation of Arbitration case between **Bhutan Postal Corproation Limited v/s Gyalcon Infrastructure Private Limted** concerning construction of building at Gelephu. In this regard, the firm would like to apprise Dasho that the first hearing was attended on June 27, 2025 and next rebuttal submission/hearing is tentatively scheduled on July 22, 2025.

Therefore, as envisaged in Clause 4(1) of the Legal Service Agreement, the Firm would like to request Dasho to kindly release 30% of the agreed fee Nu. 210,000/- (Two Hundred and Ten Thousand only) from a total agreed Nu. 700,000/- (Seven Hundred Thousand only). The fee may be deposited into following account.

- Account No. 214433432
- Accounder Holder: Geylek Kuenjung Law Firm

Please find attached a copy of submission of claimant and Legal Service Agremeent for reference.

Thanking you.

Your Sincerely,

Mr. Kuenzang Dorji
(Attorney at Law)

Head (CCSD)
Forwarded for action as per our agreement.
Enforced.
Dy. CEO
4-7-25

Head AHD
✓ For NIA as discussed.
4/7/25

Cc:
1. Office Copy.

Geylek Kuenjung Law Firm, Bar Council of Bhutan Certified Lawyer,
Thimphu: Bhutan,
Contact: +975-17750505

HR
For n/a action.
4/7/25

LEGAL SERVICES AGREEMENT

This agreement is made between Mr. **Kuenzang Dorji, Attorney, Geylek Kuenjung Law Firm**, Thimphu Bhutan hereafter referred to as "Law Firm", and **Bhutan Postal Corporation Limited**, from Thimphu Dzongkhag, Thimthrom referred to as "Client".

Have agreed as the following:

RESPONSIBILITIES OF LAW FIRM

1. The Law Firm shall:

(a) Perform the legal services called for under provision 3 of this agreement,

(b) Share submission prepared to client before submission to the tribunal; and

(c) Keep Client informed of progress and developments.

RESPONSIBILITIES OF CLIENT

2. The Client shall:

(a) Provide all information and documents to Law Firm's effective representation,

(b) Share comments on the submission shared by law firm within next day;

(c) Make timely payment required by this agreement.

SERVICES TO BE PROVIDED

3. The legal services to be provided by the Law Firm to Client is representation in the case between **"Bhutan Postal Corporation Limited v/s Gyalcon Infrastructure Pvt. Ltd"** Arbitration Centre, Thimphu.

FEES/DEPOSIT and ANY OTHER ADDITIONAL COST

4. The client agreed to pay a total fee of Nu: **700,000** /-, as specified below:

1) Pay 30 percent of agreed fees on attending first hearing;

2) Pay 30 percent of agreed fee on attending second hearing;

3) Pay 20 percent submission of closing argument; and

4) Pay the remaining 20 percent on delivery and enforcement of the award.

GUARANTEE

5. The Law Firm may provide Client with his professional opinion and advice regarding how the matter may be resolved. In doing so, the Law Firm makes no guarantee regarding the outcome.

COMMUNICATION

6. Law Firm and Client shall communicate with one another using unencrypted email/whatsapp and cellular telephones.

TERMINATION

7. This agreement may be terminated by either party, at any time, by giving written notice either for failure to perform by law firm or not having paid fees by client as specified in clause 4 among others.

DISPUTES SETTLEMENT

8. Any dispute arises out of interpretation and/or implementation of this Agreement shall be resolved amicably between the **PARTIES** by negotiation.
9. If unresolved, the **PARTIES** shall refer the dispute to the Royal Court of Justice as per Laws of the Kingdom of Bhutan.

AMENDMENT

10. Any changes or amendments to this Agreement and any future agreement(s) as to services, Costs and/or Fees owed under this Agreement shall be set forth in a writing signed by the parties in order to be effective.

ENTRY INTO FORCE AND VALIDITY

11. This agreement shall be effective on returns of signed copy of this agreement.

IN WITNESS WHEREOF, the undersigned, thereto have signed the present Agreement on June 23, 2025 in the English.

Mr.Kuenzang Dorji

(Attorney)

Mr.Thinley Wangchuk
Offtg. Chief Executive Officer
(Client)

Ms.Rinchen Zangmo
Head, Corporate Services Department
Witness